

CASE SUMMARY

State v. Nikhat

SC No. 1069/2023 | FIR No. 210/2022, PS Seelampur | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	6 April 2026 (date of inspection / offence: 20 December 2021 at about 8.00 a.m.)
PARTIES	State (BSES Yamuna Power Ltd.) v. Nikhat W/o Late Sayed Fasihuddin, R/o H. No. 6A/26 (New No. 760), Khasra No. 234, Main Road, Chauhan Bangar, Delhi-110053 (owner of the inspected third-floor premises)
STATUTES INVOKED	Sections 135, 150 & 2(15) (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Section 106, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Convicted under Section 135 read with Section 150 (abetment), Electricity Act, 2003. Civil liability on the theft bill (Rs. 50,033/-) settled and the amount deposited during trial and an NOC issued. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether Naseem Bano — the user/tenant who abstracted electricity at the inspected premises but was not arrested — dishonestly abstracted electricity through a single-core black-and-red wire joined to a yellow cable tapped from the licensee’s distribution box, the premises having no meter; whether the accused Nikhat, the registered consumer/owner of those premises, abetted that theft by consciously permitting it, so as to be guilty under Section 135 read with Section 150 of the Electricity Act, 2003; and whether, once the prosecution proved an unauthorised means of abstraction, Nikhat discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 20 December 2021 at about 8.00 a.m., an inspection team of BSES Yamuna Power Ltd. (the complainant company) headed by Sh. R.B. Yadav (Assistant Manager) inspected the premises. No electricity meter was installed at the inspected premises; one lady, Naseem Bano, who claimed to be a tenant of the accused, was found drawing supply through a single-core black-and-red wire joined to a yellow cable connected from the Distribution Box of BSES YPL. Complete videography could not be captured because of resistance created by one Farhad present at the spot; the illegal wire was nonetheless removed and seized. The connected load was 2.740 KW, used for domestic purposes; the proceedings were videographed and an Inspection Report, Load Report and Seizure Memo (with an advisory notice) were prepared at the spot. Following DERC guidelines the company assessed a theft demand of Rs. 50,033/-, which went unpaid, and its Authorised Officer filed a complaint under Section 135 read with Section 150 of the Act.

The user/tenant Naseem Bano was not arrested; the prosecution proceeded against Nikhat as the registered consumer/owner of the premises. A notice under Section 251 Cr.P.C. was served and Nikhat pleaded not guilty. The inspecting officials and the Investigating Officer were examined; the ownership of the premises was proved through the seized ownership documents. Under Section 313 Cr.P.C. Nikhat denied the allegations and pleaded false implication, and led no defence evidence. Counsel submitted that the theft bill had been settled, the settlement amount deposited and an NOC issued by the complainant company.

REASONING OF THE COURT

HEADNOTE

A registered consumer/owner who consciously permits a tenant to draw an unauthorised supply from the licensee's network abets the theft and is guilty under Section 135 read with Section 150 — and the abettor can be convicted even though the actual user has absconded and is never tried. “Consumer” in Section 2(15) reaches the owner (**Lokesh Chandela**), and the compulsory presumption in the third proviso to Section 135(1) convicts the owner who leads no evidence of lawful, metered use.

The offence was made out on proof of an unauthorised abstraction at the owner's premises. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated through a single-core black-and-red wire joined to a yellow cable tapped from the licensee's distribution box, the premises having no meter as a clause (a) connection with the licensee's distribution box. On proof of that artificial means the third proviso's presumption of dishonest use arose.

The owner is a “consumer” under Section 2(15) and answerable for abstraction at the premises. Reproducing Section 2(15), the Court held that both the user and the owner/registered consumer fall within “consumer,” so Nikhat was answerable once illegal abstraction was found at the premises — drawing support from **Lokesh Chandela v. State of NCT & Ors.** (Delhi HC, Crl. A. 479/2011).

The owner's conscious permission was abetment, and the user's absconding did not absolve the abettor. As registered consumer/owner, Nikhat knew the premises had no lawful metered supply, yet permitted Naseem Bano to occupy and draw electricity through the unauthorised connection. That conscious allowance constituted abetment under Section 150, which carries the punishment of the principal offence. That Naseem Bano had absconded and was never arrested or tried did not absolve the abettor: the abettor's liability is independent of whether the principal is in the dock.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on **Punjab State Electricity Board v. Ashwani Kumar**, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on **Sushil Sharma v. BSES Rajdhani Power Ltd.** (Delhi HC, Crl. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested.

The presumption was compulsory, and settlement of the bill fortified the case. Following **Neeraj Dutt** (compulsory “shall presume”) and **Hiten P. Dalal** (prudent-man standard), the Court held that Nikhat, having led no defence evidence and produced no paid bills (**Mukesh Rastogi**; Section 106 onus), failed to rebut the presumption; and the settlement of the Rs. 50,033/- bill, with deposit and NOC, corroborated the theft rather than closing the criminal case.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated through a single-core black-and-red wire joined to a yellow cable tapped from the licensee’s distribution box, the premises having no meter as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the 50,033 assessment measured the theft and required no separate proof as an ingredient.

HELD

The prosecution proved beyond reasonable doubt that no lawful metered supply existed at the inspected premises and that electricity was being abstracted through an unauthorised connection, which Nikhat, as registered consumer/owner, consciously permitted. **Nikhat is accordingly convicted under Section 135 read with Section 150 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

An owner-as-abettor conviction where the actual user (Naseem Bano) absconded and was never tried. Five propositions stand out:

- **An owner can be convicted of abetment even where the user has absconded.** The registered consumer/owner who consciously permits an (unarrested, untried) tenant to draw an unauthorised supply is guilty under Section 135 r/w Section 150; the principal’s absence from the dock does not absolve the abettor.
- **“Consumer” under Section 2(15) reaches the owner.** The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (*Lokesh Chandela*).
- **The reverse-onus presumption binds the owner-abettor.** Once the unauthorised means is proved, the owner must show lawful, metered use — paid bills under the Section 106 onus (*Mukesh Rastogi*) — failing which the compulsory presumption convicts.

- **Settlement, deposit and even an NOC are not immunity.** Closing the civil account — paying the settled bill and taking an NOC — does not answer the Section 135 charge; the settlement is read as conduct corroborating the theft.
- **Third-party obstruction of the videography does not defeat the case.** That a person at the spot (Farhad) prevented complete videography did not weaken the prosecution, the seizure and the officials' consistent testimony independently proving the tap.
- **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (*Ashwani Kumar; Sushil Sharma*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Lokesh Chandela v. State of NCT & Ors.</i> Delhi HC, CrI. A. 479/2011	Both the user of electricity and the owner/registered consumer of the premises fall within "consumer" under Section 2(15), making the owner answerable for illegal abstraction found at the premises.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	"Shall presume" denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.